



E P A M S Y S T E M S A R G E N T I N A

OFFER LETTER

From: EPAM
Subject: Offer letter

February, 9, 2024

To: Angel Silva

Dear Angel,

EPAM SYSTEMS ARGENTINA SRL. ("EPAM" or the "Company") is pleased to extend you this offer of employment, the terms of which are outlined below but may be subject to change upon mutual agreement at any time prior to the commencement of your employment.

POTENTIAL ROLE

The role being explored is a remote **Software Engineer – L3**

The role would be located within Argentina, working primarily from your home office. You may be expected to travel from time to time, including locally or internationally, depending on EPAM's current or future operations.

GENERAL CONDITIONS

The role is expected to begin work on an agreed date during the week of 14/02/2024 but this date could be subject to change by mutual consent or at the Company's discretion due to the business operation or if the requirements for hiring are not met in due time.

The majority of work would be performed remotely without the need to visit the office of the Company, although business trips and working at the client's premises are possible upon preliminary agreement with EPAM.

Employment would be established for a trial period of three (3) months. At the end of the trial period, the agreement will be considered as established for an indefinite term.

WORKING HOURS:

Working hours will be established according to the needs of the Company and to the job position in compliance with Argentinian legislation. Usually working hours will be 9AM to 6PM but could vary depending on the Company's needs.

You would need to be available in any required corporate messengers (ex: skype, teams) during working hours agreed on in advance with your manager.

Only with a previous manager's authorization, you could work extra hours. Given that EPAM is a global company spanning numerous time zones, it is your obligation to switch off your laptop and other work devices so as not to send or receive work messages after your customary working hours.

Angel Silva

COMPENSATION

- The base salary for the role would be USD 4000 gross per month which would be satisfied by paying the equivalent in ARS using the seller exchange rate of Banco de la Nación Argentina published seven days before the last working day of the month for which salary is owed.
- At your request, EPAM may pay a certain percentage of your salary in U.S. dollars to a bank account abroad designated by you. The bank account must be owned by you. For such purposes, you must give EPAM bank account data sufficient to effectuate the payment transactions.
- **If you opt to have a portion of your base salary paid to your U.S. bank account abroad in U.S. dollars, an identical portion of your bonus will also be paid in this manner**
- During your initial calendar year of employment, you have elected to have _____% of your salary paid to your U.S. bank account abroad in U.S. dollars. For subsequent calendar years of employment, the percentage of your salary which may be paid in U.S. dollars to your foreign bank account will be selected by you at the beginning of the new calendar year. You may select annually from the following percentage of salary options: 0%; 30%; 60%; or 100%. The deadline for making this election will be January 17th of each year for the remainder of the calendar year. You agree to use salary.epam.com or any other EPAM tool designated by EPAM for this purpose to make your selection of salary percentage to be paid in U.S. dollars.
- The exchange rate to be applied to any salary payments made to your foreign bank account in U.S. dollars will be the seller exchange rate of Banco de la Nación Argentina published seven days before the last working day of the month for which salary is owed.

Your monthly salary will be paid no later than the last business day of the month, through electronic transfer to your bank account. However, EPAM reserves the right to make the salary payment as early as two days prior to the last working day of the month.

All salary information is confidential and you are instructed to not disclose this information internally within the Company.

The payment of salary would be subject to all tax withholdings and deductions according to the applicable laws. Any change or impact (discounts or taxes) to salaries in Argentina will apply to you.

REMOTE CONNECTIVITY EXPENSE REIMBURSEMENT

You will receive the amount of USD 30 (for full time employment), as compensation for additional costs that you may incur, such as internet connection, electricity, use of employee's laptop (if applicable), etc. The amount involved is defined based on the agreement between you and EPAM according to the needs of the work and is subject to review and revision by Human Resources.

The items for which you will be reimbursed constitute work tools and, as such, they have no remunerative nature; therefore, it will not be considered as salary for any purposes, including calculating any other items.

YOUR BENEFITS

- Thirteenth monthly salary, payable in two installments: by the end of June and on December 18th, in accordance with the Argentine Labor Code, Section 121 and 122.
- 2 (two) weeks for annual holidays, to be used according to applicable law.
- Health insurance.

- Mandatory collective life insurance.
- Other legally required benefits per Argentine Labor Code.

CONTINGENCIES

Prior to commencing your employment, EPAM would require a labor certification from your most recent two employers.

Prior to starting work and as a condition of employment you would be required to:

- Provide to EPAM legal proof of your identity and authorization to work in Argentina.
- Complete EPAM's standard Argentina background check, with results satisfactory to EPAM. You are required to provide all documentation necessary to complete the labor certification and other components of the background check within five business days of the execution of an Offer Letter.
- Provide EPAM a firm start date commitment within five business days of execution of an Offer Letter.
- Take medical examinations.
- Execute the non-disclosure/non-solicitation agreement

On the first day of your EPAM employment, you will also be required to review and acknowledge the EPAM Argentina Employee Handbook.

You will also be required to complete EPAM Argentina's standard onboarding modules on and after your first day of employment.

PROCESSING OF PERSONAL INFORMATION.

You agree and expressly authorize that EPAM and the EPAM Systems, Inc. Group of Companies may collect, use and disclose, locally and internationally, any personal information contained in your application file for certain administrative and other purposes relating to your consideration employment, including for example sharing such information with company clients who you may perform services for in your prospective position. You also acknowledge that EPAM and the EPAM Systems, Inc. Group of Companies may transfer any such personal information among themselves or with outsourced payroll or benefits providers as necessary for the purpose of human resources, payroll and benefit administration relating to your prospective employment with the Company.

The personal data subject is entitled to exercise the right to access such data at intervals no shorter than six months entirely free of charge, unless there is proof of a legitimate interest in such access in shorter periods, as established in Section 14, Sub-section 3 of Act No. 25,326. The Agency of Access to Public Information, in its function of controlling agency responsible for enforcing Act No. 25,326, has the attribution to receive the reports and complaints filed in connection with the infringement of personal data protection regulations.

[El titular de los datos personales tiene la facultad de ejercer el derecho de acceso a los mismos en forma gratuita a intervalos no inferiores a seis meses, salvo que se acredite un interés legítimo al efecto conforme lo establecido en el artículo 14, inciso 3 de la Ley N° 25.326. LA AGENCIA DE ACCESO A LA INFORMACIÓN PÚBLICA, en su carácter de Órgano de Control de la Ley N° 25.326, tiene la atribución de atender las denuncias y reclamos que interpongan quienes resulten afectados en sus derechos por incumplimiento de las normas vigentes en materia de protección de datos personales.]

We look forward to speaking with you further regarding this opportunity for you at EPAM. We kindly ask you to respond to the offer letter, either accepting it or not, no later than 14/02/2024 by contacting Human Resources; WFAHumanResourceAR@epam.com. After this period, the conditions set forth in the offer letter will expire.

Sincerely,

EPAM SYSTEMS ARGENTINA SRL.

Accepted by:

Angel Silva

Candidate Signature

Candidate Name: